

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 27, 2014

Due to the Memorial Day holiday, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez. ABSENT: Ms. Broyles and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance, led by members of the Mayor's Youth Council, was recited.

Expression of Appreciation to Mayor's Youth Council and State of the Youth Report. Juliette Givhan, Chair of the Mayor's Youth Council, provided a brief presentation of the group's activities and learning experiences during the past year. She noted the members' involvement with local service groups and community issues affecting youth; leadership and educational opportunities provided through discussions with local government officials and staff, and tours of facilities and operations. Jan Spires, Mayor's Youth Council Coordinator, commended members of the 2013-2014 Youth Council on their commitment and involvement. With assistance from Katrina Peterson, who also provided administrative support for this year's Youth Council, Mayor Kaysen presented Certificates of Appreciation to the following Youth Council members: Juliette Givhan (Chair), Alex Cole (Vice-Chair), Caroline Alston, Elizabeth Babbitt, Tyler Bedwell, Alex Farkas, Alexis Ferrari, Rachel Moseley, Emily Piel, Kesslee Stewart, Jason Weber and Darnell Wheeler Jr. Mayor Kaysen expressed appreciation to members for their time, commitment and dedication, and also to members' families for their support.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 12, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive public comments regarding the intent of the City of Cheyenne to submit an application to the Wyoming Business Council's Business Ready

Community, Community Readiness Grant Program, for the Christensen Railroad Overpass and Corridor Project. Tom Mason, Director, Metropolitan Planning Organization, reviewed the intent of the grant program and provided information on the project. He advised the grant amount to be requested is \$3,000,000, which would involve a local match of \$1,500,000; noted an application for a competitive federal TIGER grant has also been submitted; stated the total estimated cost of the project is \$13.4 million dollars, and provided information on other potential funding sources, including leveraging of grant funds if awarded. J. Fred Volk spoke in support of the application request and transportation connectivity benefit to the neighborhoods in the area. Upon inquiry, Mr. Mason stated public safety benefits could be realized due to the existing City Fire Training Center in the vicinity and it's capability of being utilized as a fire station in the future. There being no further input and comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing. Mayor Kaysen noted Agenda Item #25 (Resolution) was related to the public hearing topic and would be reviewed at the Finance Committee meeting on June 2, 2014.

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed-Use Business Emphasis for Lot 1, Block 1, Tak Subdivision and Lot 1, Block 1, Dan Subdivision, Cheyenne, Wyoming (located north of and adjacent to W. Lincolnway, between Westland Road and I-25). Boyd Wiggam, Wyoming Liberty Group, spoke in support of the proposed ordinance to allow private landowners and developers to meet community needs, noting his belief the action meets the general goals of PlanCheyenne and would provide for affordable housing (apartments). Reporting for Public Services Committee, Mr. Allen stated there was no recommendation on the item from Committee. Mr. Allen advised it had been brought to his attention that following the Committee meeting, the agent for the applicant requested the item be withdrawn from the agenda. Following query to members of the governing body and with no objection being raised, Mayor Kaysen announced the item was being withdrawn from the agenda.

ORDINANCE - Amending Sections 2.76.020(A) and (B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the code of the City of Cheyenne, Wyoming. Mr. Allen moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation all for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015. Reporting for Committee of the Whole, Dr. Rinne moved to approve on second reading, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present. A summary of the proposed budget is as follows: General Fund, \$47,229,809; Weed and Pest, \$510,000; Youth Alternatives Grants, \$772,190;

Development Impact Fees, \$151,000; Recreation Programs, \$1,049,027; Community Development Block Grant, \$408,118; 1% Sales Tax Fund, \$10,160,180; Law Enforcement Grants, \$164,880; Transportation Planning, \$828,209; FTA Transit Grant, \$2,554,151; Juvenile Justice, \$235,536; Special Friends, \$145,667; Special Purpose Option Tax, \$172,484; Youth Activities, \$66,410; Golf Facilities, \$221,000; Fleet Maintenance, \$5,195,966; Solid Waste Management Fund, \$14,729,637; Civic Center, \$973,300; Ice and Events Center, \$542,718; Cemetery Perpetual Fund, \$20,000 - Total City proposed budget - \$86,130,282. Water Department, \$35,830,775; Sewer Department, \$24,239,525 - Total Board of Public Utilities proposed budget - \$60,070,300, for a total proposed budget appropriation of \$146,200,582.

ORDINANCE - Amending the City of Cheyenne's Solid Waste fee schedule established by Ordinance No. 4013. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry, Jim Elias, Public Works Director, verified a draft of the rate study is in the process of being reviewed by staff and that a work session with the governing body will be scheduled to discuss the report and recommendations from the consultant. Discussion followed on budget structure changes involving solid waste funds for FY2015; implementation and time frame regarding the rate study; rates being tied to the cost of operations and not necessarily a Cost of Living Adjustment (COLA) or consumer price index; incremental increases; planning (cost of development) study which is in progress vs. regular daily sanitation business costs, and timing of the fee schedule increase per the proposed ordinance vs. approval of the final rate study. Motion carried. Voting "yes" -- Mr. Allen, Mr. Brown, Mr. Cook, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Luna, Mr. Shanor and Mr. Valdez.

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to allow Service Users, Animal Care - Hospital/Clinic in the CBD Central Business District after conditional discretionary review -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Amending Ordinance No. 3980 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne -- referred to Finance Committee (sponsors -- Mr. Brown and Mayor Kaysen).

ORDINANCE - Amending Ordinance No. 3981 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department -- referred to Finance Committee (sponsors -- Mr. Brown and Mayor Kaysen).

[CA] RESOLUTION - Approving the budget of the Downtown Development Authority/Main Street for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015. Motion (per Consent Agenda) carried. (#5587)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Pronghorn Crossing, a replat of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, west of Ridge Road). Motion (per Consent Agenda) carried. (#5588)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Platte Valley Subdivision, a portion of the W½ of Section 28, T.14N., R.65W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to I-80 Service Road, west of Archer Parkway). Motion (per Consent Agenda) carried. (#5589)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Gould Subdivision, 2nd Filing, a replat of Lot 10, Block 1, Gould Subdivision, Laramie County, Wyoming (located at the northwest corner of the intersection of Harmon Avenue and Victoria Drive). Motion (per Consent Agenda) carried. (#5590)

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311. Motion (per Consent Agenda) carried. (#5591)

[CA] RESOLUTION - A Joint Resolution Certifying that the Governing Bodies of the City of Cheyenne, the Town of Albin, the Town of Burns, the Town of Pine Bluffs, and the Board of County Commissioners of Laramie County, Wyoming, support proposed modifications to Chapter 32 of the Rules and Regulations of the State Loan and Investment Board for the Capital Improvement Projects-Countywide Consensus Program. Motion (per Consent Agenda) carried. (#5592)

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for the Electronic Citation Implementation Grant through the Wyoming Supreme Court (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#5593)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to enter into a Memorandum of Understanding with the Board of County Commissioners of Laramie County, Wyoming, to submit a joint application for a grant award under the Edward Byrne Memorial Justice Assistance Grant Program. Motion (per Consent Agenda) carried. (#5594)

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Community Readiness Grant Application, to the Wyoming Business Council on behalf of the Governing Body of the City of Cheyenne for the Christensen Railroad Overpass and Corridor Project -- referred to Finance Committee (sponsors -- Mr. Brown and Ms. Broyles).

[CA] RESOLUTION - Approving the Application of the City of Cheyenne for Transportation Alternatives Program (TAP) Funding for the Construction of the Saddle Ridge Greenway Connector -- referred to Finance Committee (sponsors -- Mr. Brown, Ms. Broyles and Mr. Cook).

Preliminary Plat for US 30 Business Plaza, a replat of Lots 1 and 5-8, Block 2, all of Block 3, all of Block 4, Countryside Addition and a portion of the NE¼ of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as US 30 Business Plaza (located at the southwest corner of the intersection of US Highway 30 and Whitney Road). Mr. Allen moved to acknowledge receipt of the Planning Commission's recommendation to approve with staff condition #1, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Contract between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives, regarding the provision of Diversion Services. Motion (per Consent Agenda) carried (revenue to the City - \$157,800.00). (#6171)

[CA] Contract between the City of Cheyenne and Goat Green, LLC, for vegetation management along Dry Creek (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00). (#6172)

Professional Services Agreement between the City of Cheyenne on behalf of the Metropolitan Planning Organization and Cambridge Systematics, Inc., for the Cheyenne Transportation Safety Management Plan update (National Highway Transportation Safety Administration, Highway Safety Grant through Wyoming Department of Transportation). Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve, seconded by Mr. Allen. Sreyoshi Chakraborty, MPO, advised the review and update to the Plan involves compilation of transportation accident and crash data to identify areas of concern involving fatalities and injuries and to provide long and short term strategies affiliated with safety issues. Upon inquiry, Ms. Chakraborty advised the information will be shared with other agencies, such as the Safety Advisory Committee, Police Department, Wyoming Department of Transportation and schools, and clarified federal funding has been received for the project. Upon further inquiry, she explained corridor design plans conducted through the MPO looks at different elements, such as engineering, to address transportation safety improvements whereas the emphasis of the transportation plan is to address problematic areas and behavioral issues, such as distracted driving. Motion carried. Voting “yes” – all members of the governing body present. (#6173)

[CA] Contract between the City of Cheyenne and Delta Dental of Wyoming for dental coverage for full time city employees. Motion (per Consent Agenda) carried. (#6174)

Business Ready Community-Business Committed Loan and Security Agreement between the City of Cheyenne and the Wyoming Business Council to provide \$3,000,000 in loan funds to assist in the construction of a rail spur, switching, and related rail facilities to serve the Swan Ranch Rail Park, Cheyenne, Wyoming, and including financing statements and collateral assignments necessary to close the loan transaction. Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute dated 5/16/14, seconded by Mr. Luna. Upon inquiry, Dan White, City Attorney, provided information on changes contained within the substitute involving the inclusion of signatures lines for the Wyoming Business Council, minor editorial changes in Schedule 2, and a Consent to Lien. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#6175)

Promissory Note under which the City of Cheyenne shall be obligated to pay to the Wyoming Business Council the principal sum of \$3,000,000, with interest as specified in said note, from special funds and collateral assets pledged to the City of Cheyenne by Granite Peak Development, LLC, and its principals and related business entities, pursuant to the May 2, 2014 Amended and Restated Project Development and Administration Agreement relating to the construction of a rail spur, switching, and related rail facilities to serve the Swan Ranch Rail Park,

Cheyenne, Wyoming. Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute dated 5/16/14, seconded by Dr. Rinne. Upon inquiry, Dan White, City Attorney, advised the substitute changes wording in Section 1.2 affiliated with timing of annual payments relative to completion of the rail spur. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#6176)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services (revenue to City) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Cody, Wyoming, Police Department, for law Enforcement Extraterritorial Assistance -- referred to Finance Committee.

[CA] Department of Air Force License to the City of Cheyenne, Wyoming, to use property located on F.E. Warren Air Force Base, Wyoming, for a parking lot for patrons attending the 2014 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for United States Department of the Air Force owned land located at F.E. Warren Air Force Base to be used and operated as a parking lot for public transportation services during the 2014 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Frontier Days, Inc., and Laramie County School District No. 1 for buses owned by the Laramie County School District No. 1 to be used and operated for public transportation services during the 2014 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for buses owned by the Laramie County School District No. 1 to be used and operated for public transportation services during the 2014 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping and other activities during the 2014 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Recycling Services Agreement with WM Recycle America, L.L.C., for baled residential single stream recyclables and baled old corrugated containers -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for employee Wellness Coaching Services for the term of July 1, 2014 through June 30, 2015 -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Advanced Communications Technology to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee (revenue to City) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Deep Green Energy, LLC, for replacement of light fixtures in the George Cox and Jack R. Spiker parking facilities (Impact Assistance funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5994 between the City of Cheyenne, Engineering Department, and Simon Contractors for elevation changes to the box culvert along 23rd Street for the Snyder Street Reconstruction Project (2003-2006, 2007-2010, 2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$45,000.00) (#5994)

[CA] Amendment No. 1 to Contract No. 5792 Memorandum of Understanding between the City of Cheyenne and the 37th Helicopter Squadron of the United States Air Force for use of the Belvoir Ranch for helicopter training -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6130 between the City of Cheyenne and the Wyoming Department of Transportation for Epoxy Striping (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Addendum to Master Group Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage for the term of July 1, 2014 through June 30, 2015 -- referred to Finance Committee.

[CA] Addendum to Master Group Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage pertaining to the Transitional Reinsurance Program Assessment Fee -- referred to Finance Committee.

[CA] Consideration of Bid #R-17-14 for furnishing two new 2014-2015 cab and chassis units with rear load sanitation refuse collection bodies, 25 cubic yard with tippers for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne, including 2 trade-ins; amount not to exceed \$312,258.00).

[CA] Consideration of Bid #R-18-14 for furnishing one new 2014-2015 roll-off truck for the City of Cheyenne Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne; amount not to exceed \$135,113.00).

Consideration of Bid #M-23-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Recco, Inc., d/b/a Five-R Company, Cheyenne, Wyoming, for the renovation and expansion of the Cheyenne Botanic Gardens Conservatory Project (1% Specific

Purpose Sales & Use Tax). Mr. Brown moved to reject all bids, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Consideration of Bid #M-22-14 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation and Subsidiary of Cheyenne, Wyoming, for the Logan Avenue Reconstruction Project (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$7,231,157.20). (#6177)

[CA] Consideration of Bid #M-20-14 for a contract between the City of Cheyenne, 1% Construction Division, and JTL Group, Inc. d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2014 City Overlay Project (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

Appointment of Barry Sims to the Visit Cheyenne Board. Mr. Brown moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Amiee Reese and Scott French to the Visit Cheyenne Board, and Larry Atwell to the Cheyenne/Laramie County Economic Development Joint Powers Board. Dr. Rinne moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held June 9, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Del-Van Storage Park Annexation (located at 5311 Dell Range Boulevard at the southwest corner of the intersection of Gysel Place and Dell Range Boulevard).

Announcement was made of a Public Hearing to be held June 9, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2015.

[CA] Request to approve an additional dispensing room for City of Cheyenne Limited Retail Liquor Licensee AMVETS Post 10, located at 3839 East Lincolnway, Cheyenne Wyoming -- referred to Finance Committee.

Under other business:

Joe Dougherty, Director, City of Cheyenne Transit Program, encouraged the governing body to find a way to start the process to implement the Employee Investment Study, commenting on current salary levels and related market competitiveness that affect work force staffing levels. It was noted the City is waiting for a court decision regarding a law suit filed by the local newspaper affiliated with the EIS before moving forward with results of the study.

Mr. Allen commented on the difficulty sanitation workers are experiencing in getting trucks through many alleys because of interfering tree branches, and encouraged citizens to help by trimming their trees in the alley ways.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:20 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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